

25STCV11271 25STCV11271

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV11271 Hearing Date: July 6, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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SAMANTHA MURPHY, an individual doing business as SWB Entertainment,

vs.

JOSHUA JOHNSON, et al.,

Defendant(s).

Case No.:

25STCV11271

Hearing Date:

July 6, 2026

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION TO LIFT STAY OF PROCEEDINGS

I. BACKGROUND

On April 17, 2025, Plaintiff Samantha Murphy ("Plaintiff") filed her complaint against Defendants Joshua Johnson, Amanda Conrad, Dixon Talent, Inc., and Does 1 through 20, inclusive ("Defendants"). Plaintiff alleges nine causes of action against Defendants for (1) Breach of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Unjust Enrichment; (4) Constructive Fraud; (5) Negligent Hiring, Supervision, and Retention; (6) Intentional Infliction of Emotional Distress; (7) Defamation Per Se (Libel); (8) Violation of California Penal Code § 502 (Unauthorized Access & Data Misuse); and (9) Civil Conspiracy/Aiding and Abetting. Plaintiff alleges Defendants unlawfully removed Plaintiff from her long-standing position as professional representative and business partner to Defendant Joshua Johnson. Plaintiff alleges that she is a licensed and bonded talent agent who primarily serves as an independent artist representative under the business SWB Entertainment.

On November 20, 2025, the Court granted the Motion for Stay of Proceedings pending determination of controversy by Labor Commissioner of issues arising under the Talent Agencies Act ("TAA").

On May 18, 2026, Plaintiff submitted a Status Conference Statement requesting that the Court lift the stay of this action.

On May 27, 2026, Plaintiff filed this Motion to Lift Stay of Proceedings ("Motion") as to all causes of action, or alternatively, to all causes of action the Labor Commissioner has no jurisdiction. Defendants opposed Plaintiff's Motion. Plaintiff did not file a reply.

II. LEGAL STANDARD

The purpose of the TAA is "remedial; its purpose is to protect artists seeking professional employment from the abuses of talent agencies." (*Styne v. Stevens* (2001) 26 Cal.4th 42, 50.) Under the TAA, "no person shall engage in or carry on the occupation of a talent agency without first procuring a license therefor from the Labor Commissioner." (Lab. Code, § 1700.5.) A "talent agency" means "a person or corporation who engages in the occupation of procuring, offering, promising, or attempting to procure employment or engagements for an artist..." (Lab. Code, § 1700.4, subd. (a).)

When the Talent Agencies Act ("TAA") is invoked in the course of a contract dispute, the Commissioner has exclusive jurisdiction to determine his jurisdiction over the matter, including whether the contract involved the services of a talent agency. (*Styne*, supra, 26 Cal.4th at 54.) A claim to this effect must first be submitted to the Commissioner, and that forum must be exhausted, before the matter can be determined by the superior court. (*Id.* at pp. 55-56.) Thus, disputes must be heard by the Commissioner, and all remedies before the Commissioner must be exhausted before the parties can proceed to the superior court. (*Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336, 365.) The TAA statutory scheme creates an absolute bar to plaintiffs who wish to circumvent the pre-suit requirement of filing first with the Commissioner. (*Ibid.*) After the issues are first addressed by the Commissioner, both parties have the right to a trial de novo. (*Id.* at p. 360.)

III. DISCUSSION

Plaintiff contends that the continued stay of this action is no longer warranted and causes ongoing prejudice to Plaintiff's due process rights and right to timely resolve her claims. Plaintiff claims that eight months have passed since the filing of the petition with the Labor Commissioner to resolve the licensing controversy and, since then, no hearing has been set. Furthermore, Plaintiff argues that the Court is the ultimate forum for licensing questions and that the petition lacks merit. Additionally, Defendants have failed to prosecute the administrative proceeding with reasonable diligence.

In opposition, Defendants argue that the alleged licensing issue is an issue reserved for the Labor Commissioner. Defendants also argue that the Court lacks jurisdiction over this dispute until the Labor Commissioner has acted. Moreover, the timeline is routine and outside Defendant's control. The passage of time does not constitute a basis for reconsideration of the stay. Finally, a partial lift would create piecemeal litigation over claims arising from the same contractual relationship and has no support in statute or case law.

The Court previously granted Defendant's Motion for Stay of Proceedings pending determination of controversy by Labor Commissioner of issues arising under the TAA. The Court agrees with Defendants that the Labor Commissioner must first decide those issues before the dispute may be considered by the court. (Blanks, supra, 171 Cal.App.4th at 365.) Here, the Labor Commissioner has not yet set a hearing or reviewed Defendants' petition. Thus, the administrative remedy has not been exhausted, and the dispute may not proceed to the superior court.

The Court does not find persuasive Plaintiff's argument that Plaintiff is prejudiced by the time the Labor Commission will take to review this Petition. The Labor Commissioner has advised that it may take months for the hearing to be scheduled. (George Decl., ¶ 5.) This scheduling is not within Defendants' control. Plaintiff has provided no evidence of prejudice beyond stating conclusively that Plaintiff has been "suspended in procedural limbo" and that the delay may be resolved by the Court's own de novo review the issues. Thus, the Court does not find that Plaintiff has been prejudiced by the Labor Commissioner's timeline.

Moreover, Plaintiff's argument that the issues may be reviewed de novo is misplaced. The parties have a right to a trial de novo only after Labor Commissioner has first considered the issues. As the petition has not yet been reviewed by the Labor Commissioner, the Court would usurp the purpose of TAA by lifting the stay of the proceedings and denying the Labor Commission review. (See Styne, supra, 26 Cal.4th at p. 54 ["The Talent Agencies Act specifies that "[i]n cases of controversy arising under this chapter, the parties involved shall refer the matters in dispute to the Labor Commissioner, who shall hear and determine the same, subject to an appeal ... to the superior court where the same shall be heard de novo."])

Accordingly, the Motion is denied.

IV. CONCLUSION

Plaintiff's Motion to Lift Stay of Proceedings is DENIED.

Moving Party is ordered to give notice.

DATED: July 6, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.